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MORGAN LITTLE v. LAKEWOOD

REGIONAL MEDICAL CENTER, INC., ET AL.

CASE NO.: 24NWCV01399

HEARING: 07/30/2026 @ 10:30 AM

#17

TENTATIVE ORDER

I.

Defendant Lakewood Regional Medical Center, Inc.'s motion for summary judgment is DENIED.

II.

Defendant's motion for summary adjudication is DENIED.

Moving party to give notice.

Defendant Lakewood Regional Medical Center, Inc. (Defendant) moves for summary judgment or, in the alternative, summary adjudication as to the complaint.

Background

On May 2, 2024, Plaintiff filed this action against

Lakewood, Mark Reynolds, M.D. (Dr. Reynolds) (collectively, Defendants), and Does 1 through 20. The complaint alleges that on August 10, 2022, Plaintiff, with her service animal, went to Lakewood's emergency room due to severe abdominal pains. (Complaint, ¶ 12.) Plaintiff alleges that from her arrival to discharge, she was discriminated against and subjected to unsafe and unsanitary conditions including being made to walk to the emergency room, being denied entrance into the waiting room without first showing certification for her service animal, being denied proper care, and being improperly discharged. (Complaint, ¶¶ 13-29.) The complaint asserts four causes of action: (1) violations of Unruh Civil Rights Act, (2) ordinary negligence, (3) professional negligence (medical malpractice), and (4) invasion of privacy.

On March 5, 2025, the Court heard Defendant's demurrer to the complaint and overruled the demurrer as to the first through third causes of action and sustained the demurrer without leave to amend as to the fourth cause of action.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant has the "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant must support the motion "with evidence including 'affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.'" (*Aguilar*, supra, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of

proof, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Evidentiary Objections

Plaintiff makes thirty-one objections to Defendant’s evidence. The Court rules as follows:

OVERRULED: 1, 2, 3, 5, 7, 8, 9, 10,
11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26

SUSTAINED: 4,
6

The Court does not rule on the remaining objections as they are not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

New Evidence in Reply

Defendant submits new evidence and new arguments in reply. This is proscribed under the statute, and the Court does not consider it. (See Code Civ. Proc., § 437c, subd. (b)(4).)

Discussion

Defendant moves for summary judgment on the grounds that each cause of action is time-barred by the statute of limitations or, alternatively, summary adjudication as to each cause of action.

First

Cause of Action – Violations of Unruh Civil Rights Act

Statute of Limitations – Code of
Civil Procedure section 340.5

Defendant moves for summary judgment on the grounds that each cause of action is time-barred pursuant to Code of Civil Procedure section 340.5 because the facts of each claim arise out of the rendering of healthcare services by healthcare providers.

As part of the Medical Injury Compensation Reform Act (MICRA), under Code of Civil Procedure section 340.5, “[i]n an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” MICRA defines “professional negligence” as “a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital.” (Code Civ. Proc., § 340.5(2).)

“[W]hen a cause of action is asserted against a health care provider on a legal theory other than medical malpractice, the courts must determine whether it is nevertheless based on the ‘professional negligence’ of the health care provider so as to trigger MICRA.” (Smith v. Ben Bennett, Inc. (2005) 133 Cal.App.4th 1507, 1514.) “The text and purposes underlying section 340.5...require us to draw a distinction between the professional obligations of hospitals in the rendering of medical care to their patients and the obligations hospitals have, simply by virtue of operating facilities open to the public, to maintain their premises in a manner that preserves the well-being and safety of all users.” (Flores v. Presbyterian Intercommunity Hospital (2016) 63 Cal.4th 75, 87 [rejecting argument converting Section 340.5 “into an all-purpose rule covering

essentially every form of ordinary negligence that happens to occur on hospital property.”].) “When...the question presented concerns which limitations period applies, courts also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects.” (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336, 347.)

The complaint alleges that Defendants discriminated against Plaintiff and denied Plaintiff with full and equal accommodation and services due to “its perception of Plaintiff’s disabilities which required Plaintiff to have her service animal with her.” (Complaint, ¶¶ 36-37.) The complaint alleges Defendant improperly refused to admit Plaintiff into the ER for six hours, provided her medical care in the ER waiting room thereby violating her right to privacy, prematurely placed her in a non-functional room for several hours by herself, and prematurely discharged her. (Complaint, ¶ 36.)

The Unruh Civil Rights Act broadly outlaws arbitrary discrimination in public accommodations. (Jankey v. Lee (2012) 55 Cal.4th 1038, 1044.) The gravamen of Plaintiff’s Unruh claim is that Defendant discriminated against her due to her disabilities and service dog thereby affecting when and where she would eventually receive medical services. The complaint alleges that the denial of equal access arose out of Defendant’s intentional discrimination, not Defendant’s provision of medical services. Therefore, the Court agrees that Defendant’s first cause of action is not governed by MICRA and not barred under its statute of limitations. This is consistent with the Court’s ruling on Defendant’s demurrer, and Defendant does not present facts on summary judgment demonstrating otherwise.

Thus, Defendant’s motion for summary judgment is DENIED. The Court proceeds to rule on Defendant’s motion for summary adjudication.

Merits
of First Cause of Action

Defendant additionally moves for summary adjudication as to the first cause of action on the grounds that Plaintiff was accommodated and no adverse action was taken.

Civil Code section 51, subdivision (b) provides: “All persons within the jurisdiction of this state are free and equal, and no matter

what their...disability...are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever." "A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA (§ 51, subd. (f)); or (2) denial of access to a business establishment based on intentional discrimination." (Martinez v. San Diego County Credit Union (2020) 50 Cal.App.5th 1048, 1059.)

"To establish a violation [under Title III], a plaintiff must show: (1) a covered disability; (2) 'the defendant is a private entity that owns, leases, or operates a place of public accommodation; and (3) the plaintiff was denied public accommodations by the defendant because of [the] disability.'" (Id., at p. 1060, emphasis in original.) An Unruh claim that is premised by an ADA violation does not require proving intentional discrimination. (Munson v. Del Taco, Inc. (2009) 46 Cal.4th 661, 678.)

Defendant argues that Plaintiff cannot establish an adverse action by Defendant because they accommodated Plaintiff by allowing her dog to remain with her at all times. It is undisputed that the dog remained with her at all times. (UMF, ¶ 36.) Defendant additionally puts forth a declaration by Christopher K. Boucher, a former Director of Human Resources of Port of Oakland, who opines that Plaintiff's requested accommodation, to have her dog at all times, was provided. (UMF, ¶ 36.)

Defendant does not meet its burden in showing Plaintiff's Unruh claim has no merit. Defendant does not address all theories raised in the complaint. "If the defendant does not address an issue in a motion for summary judgment that has been raised in the plaintiff's complaint, it fails to meet its initial burden to show the plaintiff's action has no merit." (Hedayati v. Interinsurance Exchange of the Automobile Club (2021) 67 Cal.App.5th 833, 846.) Defendant only addresses that Plaintiff was permitted to have her dog with her. Defendant does not address Plaintiff's allegations that she was "denied entrance to the ER waiting room because she allegedly needed to first show certification for her service animal—for several hours" or that because of the service animal Defendant "... (2) provided her medical care in the ER waiting room (in public)...; (3) placed her in a non-functional room for several hours by herself; and (4) prematurely discharged her from the Hospital." (Complaint, ¶¶ 14, 36.)

Moreover, Defendant argues that Plaintiff failed to establish discriminatory intent or causation under CACI 3060. As argued by Plaintiff in opposition, Plaintiff's ADA violation theory under Unruh does not require a showing of discriminatory intent. (Munson, supra, 46 Cal.4th at p. 678.)

Since Defendant does not address all of Plaintiff's theories underlying her Unruh claim, Defendant does not meet its burden as to the first cause of action.

Accordingly, Defendant's motion for summary adjudication as to the first cause of action is DENIED.

Second
Cause of Action – Ordinary Negligence

Code of Civil
Procedure section 340.5

Defendant argues that Plaintiff's ordinary negligence cause of action is improper based on Plaintiff's professional negligence cause of action as the allegations both arise out of professional services by a healthcare provider.

"As to any given defendant, only one standard of care obtains under a particular set of facts, even if the plaintiff attempts to articulate multiple or alternate theories of liability." (Flowers v. Torrance Memorial Hospital Medical Center (1994) 8 Cal.4th 992, 1000.) "Since the standard of care remains constant in terms of 'ordinary prudence,' it is clear that denominating a cause of action as one for 'professional negligence' does not transmute its underlying character. For substantive purposes, it merely serves to establish the basis by which 'ordinary prudence' will be calculated and the defendant's conduct evaluated. Nor does it distinguish a claim separate and independent from some other form of negligence." (Id., at p. 998.)

"Where the plaintiff's claim is premised on the violation of a professional obligation owed in the rendering of a patient's medical care, treatment, or diagnoses, the claim sounds in professional negligence and the MICRA statute of limitations will apply." (Gutierrez v. Tostado (2025) 18 Cal.5th 222, 238.) "To find whether an action arises out of the professional

negligence of the health care provider, the 'allegations that identify the nature and cause of a plaintiff's injury must be examined to determine whether each is directly related to the manner in which professional services were provided.' [Citation.] The professional duty of a hospital is primarily to provide a safe environment within which diagnosis, treatment and recovery could be carried out." (Williams v. Superior Court (1994) 30 Cal.App.4th 318, 325.)

Defendant refers to Mitchell v. Los Robles Regional Medical Center (2021) 71 Cal.App.5th 291, 295-96, 299, in which a Court of Appeal concluded that allegations that hospital staff did not accompany a plaintiff to the restroom was one for professional negligence to which Code of Civil Procedure section 340.5 applies. The Court of Appeal reasoned: We recognize that accompanying someone to the restroom is not a sophisticated medical procedure. But that is not determinative. Section 340.5 applies to more than tasks that 'require advanced medical skills and training. A medical professional or other hospital staff member may commit a negligent act in rendering medical care, thereby causing a patient's injury, even where no particular medical skills were required to complete the task at hand.'" (Id., at p. 298, citing Flores, supra, 63 Cal.4th at p. 85.) Further, "[the nursing staff]'s duty to...protect her from falling while walking in the emergency room was a duty owed to a patient, not a member of the general public. For this reason...the claim is one for professional negligence to which section 340.5 applies." (Id., at p. 298-99.) Similar to in Mitchell, one basis for Plaintiff's negligence claim is that "the Hospital staff tried to make Ms. Little walk to the ER even though she was in pain and told them she could not walk there." (Complaint, ¶ 46.)

However, as argued by Plaintiff in opposition, this represents one allegation under her ordinary negligence claim. Plaintiff also alleges that the hospital failed to timely admit Plaintiff due to her service animal. (Complaint, ¶ 44.) Plaintiff alleges that the delay in admission was due to her service animal and Defendant's insistence on proof of the animal's certification as a service dog. (Complaint, ¶ 45.) The facts supporting Plaintiff's ordinary negligence claim are distinct from Plaintiff's professional negligence claim which arise out of diagnosing, treating, and discharging Plaintiff. (Complaint, ¶ 51.) The Court finds that Plaintiff's ordinary negligence claim, which alleges a theory that her delayed admission and experience were caused by discrimination due to her service animal, is caused by an alleged breach of Defendant's duty to the public, not just Plaintiff. "Where...the

alleged negligence does not implicate a specific professional obligation...and violates only the duty of ordinary care owed to the general public, the claim does not involve professional negligence and the MICRA statute of limitations is inapplicable.” (Gutierrez, supra, 18 Cal.5th at p. 238.) Therefore, the Court finds that Plaintiff’s ordinary negligence claim, particularly as to allegations that the basis of the delay in admission was due to the service animal, properly constitute ordinary negligence. It is thus not barred under the statute of limitations under Code of Civil Procedure section 340.5.

Defendant does not make merits-based arguments regarding the ordinary negligence cause of action separate from the professional negligence cause of action. Defendant does not address (1) failure to exercise reasonable care in (1) making her walk to the ER, (2) refusing to admit Plaintiff due to her service animal, (3) failing to accommodate, and (4) leaving Plaintiff in a room by herself without a call button. (Complaint, ¶¶ 44-46.) As Defendant does not put forth evidence as to each theory, it cannot meet its burden as to the second cause of action. (Hedayati, supra, 67 Cal.App.5th at p. 846.)

Accordingly, Defendant’s motion for summary adjudication is DENIED as to the second cause of action.

Third

Cause of Action - Professional Negligence

Defendant argues that the third cause of action is barred by the statute of limitations. There is no dispute that the statute of limitations under Code of Civil Procedure section 340.5 governs this claim. Instead, the parties dispute whether the one-year statute of limitations applies.

Under Code of Civil Procedure section 340.5, “[t]he injury commences both the three-year and the one-year limitations periods.” (Drexler v. Petersen (2016) 4 Cal.App.5th 1181, 1189.) “The word ‘injury’ in section 340.5 ‘refer[s] to the damaging effect of the alleged wrongful act and not to the act itself.’” (Id., at p. 1190.) “The one-year limitations period...does not begin to run until the plaintiff discovers both his or her injury and its negligent cause.” (Ibid, emphasis added.) “When a patient experiences appreciable harm before the ultimate harm, that appreciable harm will start the limitations period.” (Id., at p. 1191.) “When a plaintiff brings a malpractice action based on the defendant’s failure to diagnose,

or misdiagnosis of, a latent, progressive condition, identification of the 'injury' is more difficult." (Id., at p. 1192.) "[T]he plaintiff in such a case may discover the injury when the undiagnosed condition develops into a more serious condition, but before it causes the ultimate harm." (Id., at p. 1194.) "With the worsening of the plaintiff's condition, or an increase in or appearance of significant new symptoms, the plaintiff with a preexisting condition either actually (subjectively) discovers, or reasonably (objectively) should be aware of, the physical manifestation of his or her injury." (Ibid.) "[W]hether measured subjectively or objectively, when a plaintiff discovers that a preexisting condition has developed into a more serious condition is often a factual issue." (Id., at p. 1195.) "The plaintiff 'need not be aware of either the specific facts or the actual negligent cause of the injury. [Citation.] If the plaintiff has notice or information of circumstances that would put a reasonable person on inquiry notice, the limitation period is activated.'" (Filosa v. Alagappan (2020) 59 Cal.App.5th 772, 779-785.)

Defendant argues that Plaintiff suffered appreciable harm when she underwent a diagnostic laparoscopy and laparoscopic partial right salpingectomy which involved excision and resection of the right fallopian tube to remove the ectopic pregnancy. It is undisputed that this occurred on August 12, 2022, two days after Plaintiff was discharged. (UMF, ¶ 46.) It is undisputed that Plaintiff presented to the Emergency Department at Los Alamitos on August 12, 2022 with complaints of severe pelvic and abdominal pain that had rapidly worsened over the prior two days." (UMF, ¶ 37.) Further, Defendant presents a signed informed consent form regarding the procedure. (UMF, ¶ 44.)

In opposition, Plaintiff argues that Defendant only shows that Plaintiff had an emergency surgery, not that Plaintiff would understand from the emergency surgery any facts that would put her on inquiry notice. For example, Plaintiff argues that Defendant does not put forth facts showing awareness that methotrexate was available but was lost because of delay, or that rupture was imminent, or that Defendant had missed an ectopic pregnancy. The fact of the emergency procedure does not establish, by itself, a suspicion of wrongdoing. (See Filosa, supra, 59 Cal.App.5th at p. 782 [noting "[a]lthough the undisputed evidence does establish that...headaches continued to worsen...it does not establish that...plaintiff 'became aware of additional, appreciable harm from his preexisting condition.'"].) Since the one-year limitations requires discovery of both the injury and its negligent cause, and Defendant does not establish Plaintiff's discovery of the negligent cause, Defendant does not meet its burden in showing that the statute of limitations

bars the third cause of action.

Merits

of Third Cause of Action

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305, citation omitted.) “When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 984-985.)

As to causation, “the plaintiff must offer an expert opinion that contains a reasoned explanation illuminating why the facts have convinced the expert...that it is more probable than not the negligent act was a cause-in-fact of the plaintiff’s injury.” (Jennings v. Palomar Pomerado Health Systems (2003) 114 Cal.App.4th 1108, 1118, emphasis in original.) “Mere possibility alone is insufficient to establish a prima facie case.” (Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402.) “A possible cause only becomes ‘probable’ when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action.” (Id., at p. 403.) An expert’s opinion based on assumptions of fact without evidentiary support, or speculative or conjectural facts, or is purely conclusory, has no evidentiary value. (Jennings, supra, 114 Cal.App.4th at p. 1118 [“expert opinion is worth no more than the reasons upon which it rests.”].)

Defendant argues that its care and treatment provided to Plaintiff complied with the standard of care. Defendant puts forth the declaration of Raymond L. Ricci, M.D. (Dr. Ricci), a physician board certified in emergency medicine and the Chief of Service-Emergency Department, Staff Physician Department of Emergency Medicine, and Senior Physician-Practice Management Board at Hoag Memorial Hospital Presbyterian Newport Beach from 2012 to 2024. (Ricci Decl., ¶ A-C.) Dr. Ricci reviewed the complaint, Defendant’s chart for Plaintiff, Defendant’s records for patient arrivals to the emergency department on August 9, 2022, the staffing schedule, the

County of Los Angeles Public Health letter to Defendant, the Department of Public Health's letter, and Los Alamitos's chart for Plaintiff. (Ricci Decl., ¶ E.)

Dr. Ricci opines the following:

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to a reasonable
degree of medical probability, that Plaintiff was assessed, examined and treated in a timely manner at Defendant on August 10, 2022. (Ricci Decl., ¶ 25g.)

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to a reasonable
degree of medical probability that Plaintiff was appropriately assessed and timely roomed in the Emergency Department on August 10, 2022. (Ricci Decl., ¶ 25h.)

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to a reasonable
degree of medical probability, Dr. Reynolds complied with the standard of care for Emergency Department physicians practicing in Southern California and Defendant used reasonable care and complied with the standard of care for Emergency Departments. (Ricci Decl., ¶ 25i.)

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to a reasonable
degree of medical probability, Dr. Reynolds complied with the standard of care when he ordered morphine and the nurses at Defendant used reasonable care and complied with the standard of care when they administered the morphine ordered by Dr. Reynolds. (Ricci Decl., ¶ 25j.)

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to a reasonable
degree of medical probability, Defendant used reasonable care and complied with the standard of care when Plaintiff was not given water or food while she was the Emergency Department. (Ricci Decl., ¶ 25j.)

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to a reasonable

degree of medical probability, Dr. Reynolds appropriately discharged Plaintiff and Defendant used reasonable care and complied with the standard of care when it carried out Dr. Reynolds' order to discharge Plaintiff. (Ricci Decl., ¶ 25k.)

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to a reasonable

degree of medical probability, Defendant used reasonable care and complied with industry standards and practices when it assessed and triaged Plaintiff outside its building. (Ricci Decl., ¶ 25m.)

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to a reasonable

degree of medical probability, no negligent actions or failure to act on the part of Dr. Reynolds and Defendant caused or contributed to Plaintiff's alleged inability to conceive children, increased difficulty in becoming pregnant or any other damages. (Ricci Decl., ¶ 25n.)

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to a reasonable

degree of medical probability, specific consent forms were not required and Defendant and Dr. Reynolds complied with the standard of care when they proceeded with care and treatment of Plaintiff even though she did not sign consent forms. (Ricci Decl., ¶ 25o.)

Based on the declaration of Dr. Ricci, the Court finds that Defendant meets its burden as to establishing Defendant complied with the standard of care and did not cause or contribute to Plaintiff's injuries. The burden therefore shifts to Plaintiff.

Plaintiff's

Opposition

Plaintiff argues that conflicting

expert testimony raises triable issues of material fact as to whether Defendant breached the standard of care and caused or contributed to Plaintiff's injuries.

Plaintiff produces the declaration of Anne

Schmitt, M.D. (Dr. Schmitt) to argue that a triable issue of material fact

exists. Dr. Schmitt is board certified in emergency medicine and works in the emergency department as an attending physician in the emergency department at the VA Hospital. (Schmitt Decl., ¶¶ 7-10.) Dr. Schmitt reviewed the complaint, Defendant's records, Los Alamitos's records, Dr. Ricci's declaration, Plaintiff's declaration, Defendant's discovery responses, and Defendant's policies and procedures. (Schmitt Decl., ¶ 17.)

Dr. Schmitt opines "that there was an extreme departure from the standard of care provided by the initial ED physician Dr Reynolds at Lakewood Regional Hospital." (Schmitt Decl., ¶ 31.) Dr. Schmitt opines that there were departures in the standard of care as to the identification and stabilization of an emergency medical condition; "there was a lack of medical decision making or discussion of alternative diagnoses"; Defendant failed to obtain an expert OB/GYN consultation; and that there were unclear and inappropriate discharge instructions. (Schmitt Decl., ¶¶ 26-31.)

Based on the foregoing, the Court finds that Plaintiff meets her burden in raising triable issues of material facts as to whether Defendant breached the standard of care and as to causation. Dr. Schmitt's declaration serves to controvert Dr. Ricci's opinion that Defendant complied with the standard of care and contributed to Plaintiff's injuries. Dr. Schmitt's declaration raises triable issues as to whether Plaintiff complied with the standard of care in its diagnosis, decision to discharge Plaintiff, and decision to not do a full consultation with an OB/GYN.

Accordingly, Defendant's motion for summary adjudication is DENIED as to the third cause of action.